

at least five (5) days before the CMC to apprise the Court of the status of Defendant's bankruptcy case.

8. 9:00 AM CASE NUMBER: C23-02791

CASE NAME: JOSE ANTONIO GONZALES MARQUEZ VS. JRT FREIGHT, LLC

***FURTHER CASE MANAGEMENT CONFERENCE CONTINUED FROM 12/16/25**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on Lines 12 and 13. Counsel are ordered to appear for the CMC.

Law & Motion

9. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)**

FILED BY: MILLER, RAYMOND R.

TENTATIVE RULING:

Summary

Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal is **continued** to April 15, 2026 at 9:00 a.m.

Defendant is ordered to file a Proof of Service evidencing that this Motion was served on Plaintiffs at least five (5) court days before the hearing evidence proper and timely service of this motion pursuant to Cal. Code of Civ. Proc §1005(b). Defendant's Counsel shall also file a declaration explaining whether service was accomplished timely on Plaintiffs' counsel

Background

Plaintiffs voluntarily dismissed their complaint after Miller filed a special motion to strike pursuant to the anti-SLAPP motion. Following dismissal, Miller moved for attorney's fees and costs pursuant to the same statute. This Court granted that motion, awarding \$13,555 in attorney's fees and costs to Miller. Plaintiffs appealed.

On January 23, 2026, the Court of Appeal affirmed this court's order, and remitted this case back to the trial court. The Court of Appeal ordered that Miller may recover his costs on appeal pursuant to Rule 8.278(a)(1).

On November 18, 2025, Miller filed this Motion for attorney's fees and costs incurred on appeal pursuant to Cal. Code of Civ. Proc. § 425.15(c)(1), seeking \$30,000 in attorney's fees and \$1,022 in costs, based on 60 hours of work, billed at a rate of \$500.00 per hour. The Motion was supported by Notice, Memorandum of Points and Authorities and the Declaration of James O'Gallagher. However, the Court's register of actions does not show that Miller filed a proof of service evidencing service of

this Motion to Plaintiffs.

Ruling

This Motion is continued to April 15, 2026 at 9:00 a.m. Miller's counsel is ordered to file a proof of service, and a declaration explaining whether service was accomplished timely on Plaintiffs' counsel.

10. 9:00 AM CASE NUMBER: C22-01971

CASE NAME: CONSTANTINA MARQUEZ VS. KOHL'S DEPARTMENT STORES, INC.

***HEARING ON MOTION IN RE: FOR A *NUNC PRO TUNC* ORDER FOR LEAVE TO FILE X-COMPLAINT
(SET PER COURT ORDER FILED 12/2/2025)**

FILED BY:

TENTATIVE RULING:

Before the Court is Defendants Kohl's Department Stores, Inc., Lauren Crader's Application for a *Nunc Pro Tunc* Order for Leave to File Cross-Complaint.

Procedural Background

This matter pertains to an alleged slip and fall that occurred on September 18, 2020, at a Kohl's store located in Brentwood, California. Plaintiff filed her complaint on September 16, 2022. Defendants filed their answer on February 21, 2023.

On December 3, 2024, the Court scheduled the jury trial on the matter to begin on July 28, 2025. On June 9, 2025, the Court granted the Parties' joint stipulation to continue the trial date to March 16, 2026. On September 17, 2025, Defendants filed a substitution of attorney form indicating that they had changed counsel.

On October 29, 2025, new/current counsel for Defendants filed a Cross-Complaint against Kellermeyer Bergensons Services LLC ("KBS") for indemnity and contribution. The Cross-Complaint was accepted and filed by the Court.

Thereafter, on November 25, 2025, Defendants' counsel filed an *ex parte* application seeking a *nunc pro tunc* order for leave to file the cross-complaint which was already filed and accepted by the Court. The Court denied the *ex parte* application, instead setting the motion for a regularly scheduled hearing. The hearing was set for March 25, 2026. On January 30, 2026, the Court vacated the trial date, setting a trial setting conference for June 29, 2026. The order noted that the Parties were scheduled for mediation on May 1, 2026.

Legal Standard

The issue appears to relate to Defendants' failure to obtain leave to file the Cross-Complaint. When, as here, a defendant files a cross-complaint against someone other than plaintiff it is to be filed "before the court has set a date for trial." (Code Civ. Proc. § 428.50 (a)-(b).) If that party seeks to file a cross-complaint after a trial date has been set, that party "shall obtain leave of court...." (*Id.* at (c).) "Leave may be granted in the interest of justice at any time during the course of the action." (*Ibid.*)